FOSS Licenses
– non-fulfillment in the Supply Chain

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BOSCH

1. OSS is distributed, obligations are not fulfilled: **License terminated**!

2. The wrongdoer corrects the violation and fulfills the license obligations: **License renewed?**

RED DEAD !

REDEMPTION ?

Due to lack of individuality, this is not copyright protected, https://de.wikipedia.org/wiki/Datei:Red-Dead-Redemption-Logo.svg

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Apachev2, C/EPLv2, EUPLv2, MIT, BSD

GPLv2

4. [Termination] You may not [distribute] except as expressly provided under this License. Any attempt otherwise [...] will **automatically terminate** your rights under this License.

[Downstream licenses remain] However, parties who have received copies, or rights, from you under this License will not have their licenses terminated so long as such parties remain in full compliance.

MPLv2, ArtisticLv2, CDDLv1

(A)GPLv3

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However, if you **cease all violation** of this License, then your license from a particular copyright holder is **reinstated** [unless explicitly terminated within 60 days after ceasing violation].[...].

[Downstream licenses remain...] Termination of your rights under this section does not terminate the licenses of parties who have received copies or rights from you under this License. **[...but...]** If your rights have been terminated and not permanently reinstated, you do not qualify to receive new licenses for the same material under section 10 [by way of *Automatic Licensing of Downstream Recipients*.].

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Legal nature of OSS Licenses

Generally, OSS Licenses are **“offers to anyone to enter into a license agreement”**.[1]

This means, anyone can accept the offer

- to be allowed – the otherwise forbidden – usage of the IP-protected software (copying, distributing, modifying)
- under the condition of fulfilling the license obligations.

Acceptance normally happens implicitly by usage.

Red Dead:

Usage without fulfilling the license obligations => loss of permission of usage (+ violation of the license contract + infringement of IP, with ensuing claims for e.g. information, injunction, damages…)[2]

Redemption?:

(Switch to) usage with fulfilling the license obligations => (emergence of) permission of usage?[3]

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Redemption?

The FSF provides insight into their ideas behind sec. 8 GPLv3 (and sec. 4 GPLv2)

- **GPLv2**: [...] Automatic termination can be too harsh for those who have committed an inadvertent [i.e. accidental] violation [...] A violator who resumes compliance with GPLv2 would need to obtain forgiveness from all copyright holders, [...] which might be impossible.
- **GPLv3**: [...] replaces automatic termination with a non-automatic termination process [...]

Why does the FSF find automatic termination too harsh?

Could it be, that the FSF does not assume Redemption?

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Redemption! – Forgiveness not necessary.

Generally, during my research I only found voices assuming Redemption happens just by fulfilling OSS licenses, and does not require forgiveness of the IP holders:

1. ***Till Jaeger*** shares a reason, why the authors of the GPL and the OSS community want this result: intention of spreading such OSS and not punishment of (repentant) sinners who correct their violations.[4]
2. ***LG München I (district court of Munich I)*** 19.5.2004 - 21 O 6123/04 (MMR 2004, 693, 695)

   DE: "Weiter ist zu berücksichtigen, dass das dingliche Angebot bei Verstößen nicht erlischt, sondern der Verletzer die Rechte durch Annahme und Befolgung der Bedingungen jederzeit wieder erwerben kann." **EN:** "Furthermore, it should be taken into account that the material offer does not expire in the event of infringements, but the infringer can reacquire the rights at any time by accepting and complying with the conditions.")
3. *Other judgments (*also from district courts in Germany) grant injunctions, but under the condition, that the license obligations are not fulfilled – and some of them even go into detail, by (only) requiring provision of copyright notices, license texts and source code/written offer.

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Redemption works without Forgiveness, what does this mean for the Supply Chain? – Hypothetical case:

Supplier delivers devices with embedded OSS, but **fails** to

- Case a): include the license text in full (a copy-and-paste-error…)
- Case b): see that some OSS components come under incompatible licenses

OEM integrates this into products and distributes them to **end-customers** and **distributor**.

They receive a letter from an **OSS author**…

1. If there was not way for Redemption: only rescission in respect of the illegally distributed OSS component seems viable, so **OEM** could have the **Supplier** provide a different SW component…

2. As there is Redemption, both cases can be solved by the usual warranty claims, e.g. §§ 437 BGB (cure, rescission, damages…).

Case a): **Supplier** provides the complete license texts in future deliveries, covers expenses of **OEM** to equip the not-finally distributed devices with the complete license texts, and possibly pays damages and expenses to the **OSS author**.

Case b): remaining devices (Supplier/OEM/distributor) may not be sold, new devices: redesign software

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Thank you

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